

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., et al

Respondents.

FMC Docket No. 20-14

**CONSENT MOTION OF DIRECT CHASSISLINK, INC., FLEXIVAN  
LEASING, LLC, AND INTERPOOL, INC. D/B/A TRAC INTERMODAL  
FOR LEAVE TO FILE A BRIEF *AMICI CURIAE***

Pursuant to Rule 73 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.73, three major intermodal equipment providers (IEPs) – Direct ChassisLink, Inc., Flexi-Van Leasing, LLC, and Interpool, Inc. d/b/a Trac Intermodal – hereby move with the consent of the parties for leave to file the accompanying *amici curiae* brief to assist the Commission’s consideration of the Exceptions filed to the February 6, 2023 Initial Decision (ID) in this proceeding. The IEPs are three major U.S. chassis providers who own almost all of the marine intermodal chassis assets that are the subject of this proceeding (i.e., the chassis made available in interoperable, multi-contributor chassis pools).<sup>1</sup>

The IEPs are not within the Commission’s jurisdiction, but the Initial Decision held that the Commission has the authority to award relief that would directly regulate them and their businesses, invalidate contractual and other business relationships they have freely entered into,

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<sup>1</sup> The IEPs participated in the proceedings before the Administrative Law Judge as nonjurisdictional third party respondents to discovery requests, providing documents to each side pursuant to subpoena (or in lieu of subpoena), and negotiating declarations to avoid the burden and expense of additional discovery.

and disrupt their dealings with their shipper, motor carrier, and ocean carrier customers. In the past fifteen years, the IEPs have invested billions of dollars in new and refurbished chassis assets and participate in a variety of chassis provisioning options to make these chassis available in the marketplace. The ID's proposed relief would directly affect these arrangements. The IEPs thus have a direct interest in this proceeding.

In *Sea-Land Service, Inc. -- Possible Violations of the Shipping Act*, 29 S.R.R. 1326, 1329 (2003), the Commission rejected prior more restrictive practices and simply required amicus movants, at any stage of a proceeding, to state their interests in the proceeding and explain why their participation as an amicus curiae would be desirable. The IEPs have done so by explaining that they are directly affected by the practices at issue in this proceeding, as well as the relief ordered by the ID. The IEPs also respectfully submit that their brief is desirable in order to provide the Commission with a more complete understanding of the impact of the relief on the state of chassis operations in the United States and potential supply chain issues stemming from the proposed relief. The IEPs are knowledgeable about these issues because they manage the day-to-day operations of these assets across the country.

The brief is filed conditionally herewith within seven days of the filing of OCEMA's brief, as required by Rule 73(c). Counsel for the IEPs has received written consent to the motion and filing of the brief from all parties. Because the IEPs have shown a reasonable interest in the proceeding, and that their participation would be desirable, the IEPs meet the Commission's standards and should be permitted to participate as *amicus curiae*. See *In re: Vehicle Carrier Services*, 2018 FMC Lexis 30, 1 FMC 2d 175 (2018) (allowing professors to file an amicus because they can offer a "unique perspective" on the issues in the case and they can "provide insights beyond what the parties are likely to address in their advocacy briefs.")

WHEREFORE, the IEPs respectfully request that their motion for leave to file a brief as *amici curiae* in this proceeding be granted and that the brief filed conditionally with this motion be accepted.

Respectfully submitted,

/s/ John Longstreth

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March 14, 2023

## **CERTIFICATE OF SERVICE**

I certify that, on March 14, 2023, a true and current copy of the foregoing Motion of Direct ChassisLink, Inc.; FlexiVan Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal for Leave to File a Brief *AMICI CURIAE* was filed electronically with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for Complainant and counsel for the Respondents:

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